Techcrast
CONNECTEDSUITE

LENDER PARTNERSHIP · STANDARD FORM TC-EPA V1.0

Ecosystem Partner Agreement

The agreement a licensed lender signs to join the Techcrast ConnectedSuite estate as a partner: to use the systems it chooses, to contribute to and draw on the Interchange, and to build the estate with us. Read it in full before any commercial discussion goes further.

For	Provider	Form	Governing law
Lenders joining as partners	**Techcrast Software Solutions Ltd**	**TC-EPA v1.0 · 20 Oct 2026**	**Republic of Kenya**

Standard form for negotiation. Square-bracketed items are completed per partner in the Schedules. This draft is to be reviewed by an advocate of the High Court of Kenya before signature.

00 Summary of the deal

This summary is for orientation and is not part of the agreement. The clauses that follow govern.

TOPIC	THE POSITION
What the Partner gets	The ConnectedSuite systems listed in Schedule 1, its own branded sign-in door and installable app, a fixed monthly partner rate for the term, membership of the Interchange, a seat on the Product Council, early access to new systems, and a revenue share on lenders it refers.
What the Partner gives	Pays its subscription monthly. Contributes its book to the Interchange in tokenised form. Takes part in pilots, gives timely product feedback, and agrees to be named as a partner once it has approved the wording.
Who owns what	The Partner owns its data, its borrowers' records and its brand. Techcrast, or the affiliate that holds it, owns the platform and everything built on it, including features the Partner asked for. No shares or ownership interest pass under this agreement.
The Interchange	Members see each other's exposure only as tokenised aggregates, never as books. Bureau reports flow only through a licensed bureau contract, with consent, at cost plus a stated margin.
Term	24 months, renewing for 12-month periods. The partner rate is fixed for the initial term.

01 Parties

Techcrast Software Solutions Limited, a private limited company incorporated in Kenya ("**Techcrast**"); and

[Partner legal name], a company incorporated in Kenya, registration number [_____], of [address] ("**the Partner**"), [licensed by the Central Bank of Kenya as a [digital credit provider / microfinance bank] / registered as [_____]].

Techcrast and the Partner are each a "**Party**".

Background

A. Techcrast provides **ConnectedSuite**, an estate of software systems for licensed lenders: the Lending Console, CallBox Call-Center, Customer Portal, Analytics & Reporting, Ledgerly Accounting, PeopleHub HR and the Interchange, all under one sign-in ("**BirgenAI ID**").

B. The Interchange is a member exchange through which lenders learn a borrower's exposure across members without any member seeing another's book. Bureau reports are obtained under a licensed credit reference bureau's contract.

C. The Partner wishes to use the systems in Schedule 1, to join the Interchange, and to help shape the estate. Techcrast wishes to grant that on the terms below.

02 The agreement

1. **Definitions.** In this agreement: "**Platform**" means ConnectedSuite, its systems, software, models, documentation and every improvement, modification and derivative of them, whoever proposed it. "**Partner Data**" means data the Partner or its borrowers put into the Platform, and reports generated solely from it. "**Interchange Contribution**" means the tokenised, aggregated position data described in Schedule 3. "**Systems**" means the systems listed in Schedule 1 as amended under

clause 3.4. "**Fees**" means the amounts in Schedule 2. "**Data Protection Law**" means the Kenya Data Protection Act 2019 and its regulations.

2. **Grant.**
2.1 Techcrast grants the Partner a non-exclusive, non-transferable right, for the Term, to use the Systems for the Partner's own lending business in Kenya, and to let its staff and borrowers use them.

2.2 The Partner shall not resell, sublicense, white-label for a third party, reverse-engineer, or copy the Platform, or use it to build a competing product.

2.3 The Partner's staff each hold their own BirgenAI ID. The Partner is responsible for who it admits and for the rights it grants them in the console.

3. **Systems and service.**
3.1 Techcrast will host the Systems (with production hosting in Kenya where reasonably practicable), maintain and secure them, apply updates, and meet the service levels in Schedule 4.

3.2 The Partner receives its own branded sign-in door and installable application, in its own name and mark.

3.3 Techcrast may improve, change or retire features, provided no change materially reduces the core function of a System the Partner is paying for without 60 days' notice.

3.4 Systems may be added or removed by written order (including email from an authorised signatory). The change takes effect from the next billing month and is priced under Schedule 2.

4. **Fees and payment.**
4.1 The Partner shall pay the Fees monthly. Each invoice covers one calendar month (Nairobi time), is issued on the first day of the following month, and is due on receipt. Invoices are available as PDFs in the console.

4.2 Payment is made through the BirgenAI wallet, either from the console or to the M-PESA Buy Goods till named on the invoice. A payment is complete when the funds are received.

4.3 The partner rate in Schedule 2 is fixed for the Initial Term. After it, Techcrast may change Fees on 60 days' notice, by no more than 10% in any 12 months.

4.4 Usage beyond the allowances, and bureau and identity checks, are charged as set out in Schedule 2. Pass-through costs are shown at cost, with the margin on a separate line.

4.5 If an invoice is unpaid 14 days after it is due, Techcrast may pause metered services (scoring, bureau, identity, AI) until payment. Techcrast shall never stop the Partner's access to its loan book, repayments, collections or its data for non-payment. Suspension of the rest requires 30 days' written notice.

4.6 Fees exclude VAT and other taxes, which are added where applicable.

5. **The Partner's commitments.** The Partner shall:
5.1 make the Interchange Contribution under Schedule 3 for as long as it is a member;

5.2 nominate one senior person to the Product Council, which meets at least quarterly and advises on the roadmap;

5.3 take part in agreed pilots, and respond to reasonable product questions and acceptance tests within 5 business days;

5.4 obtain and record every borrower consent its own processes require, including the consents in Schedule 3, using the consent tools in the Platform;

5.5 hold, and keep in force, every licence and registration its lending requires; and

5.6 allow Techcrast to name it as an Ecosystem Partner, in wording the Partner has approved.

6. The Interchange.

6.1 The Partner joins the Interchange as a member, on admission by the Interchange's governance, which may set membership rules applying equally to all members.

6.2 The Interchange never discloses one member's book to another. Members see only tokenised, aggregated positions and the answers the Interchange computes from them, as described in Schedule 3.

6.3 Ecosystem reports are free to members whose contribution is current. A member that stops contributing loses that free tier, and its own exposure stops appearing in other members' answers.

6.4 Bureau reports are obtained only under a licensed credit reference bureau's contract, with the borrower's consent, and only for a permitted purpose. Where they are fulfilled under another member's bureau contract, that is subject to the bureau's written approval being in force. Without that approval, the Partner may connect its own bureau contract through the Interchange.

6.5 The Partner shall use Interchange answers only to assess and manage credit for the borrower concerned, and never to market to another member's borrowers.

7. Data protection.

7.1 For Partner Data, the Partner is the data controller and Techcrast its data processor. Techcrast processes Partner Data only on the Partner's documented instructions, which this agreement and the Partner's use of the console constitute.

7.2 Each Party shall maintain its registration with the Office of the Data Protection Commissioner where Data Protection Law requires it.

7.3 Techcrast shall keep Partner Data confidential and logically separated by organisation; apply appropriate technical and organisational security measures; keep an audit trail of access; use only sub-processors bound by equivalent terms (listed on request); and notify the Partner of a personal data breach without undue delay and in any case within 48 hours of becoming aware of it.

7.4 Techcrast may produce anonymised and aggregated statistics from Partner Data to operate and improve the Platform, including its models, provided no output identifies the Partner, a borrower or a member's book.

7.5 On termination, Techcrast shall give the Partner a complete export of Partner Data in a standard format within 30 days. It shall then delete Partner Data within 90 days, except where law requires retention.

8. Ownership.

8.1 The Partner owns Partner Data and its own names, marks and brand assets, and licenses Techcrast to use them to provide the Systems.

8.2 Techcrast, or its affiliate that holds them, owns all rights in the Platform, including improvements and features suggested, requested, specified or tested by the Partner. To the extent any such right would vest in the Partner, the Partner assigns it to Techcrast, and Techcrast grants it back under clause 2 for the Term.

8.3 Feedback may be used by Techcrast freely and without payment.

8.4 **No equity.** Nothing in this agreement confers shares, options, warrants, profit share or any ownership interest in Techcrast or any affiliate. Any such interest exists only if granted by a separate written instrument approved by that company's board.

9. **Referrals.** For each licensed lender introduced in writing by the Partner that signs a ConnectedSuite subscription within 12 months of the introduction, Techcrast shall pay the Partner 10% of the subscription Fees that lender actually pays in its first 12 months. Payment is made quarterly in arrears. Usage, pass-through and onboarding fees are excluded.

10. **Confidentiality.** Each Party shall keep the other's confidential information confidential, use it only for this agreement, and disclose it only to staff and advisers who need it and are bound by equivalent duties, or where law or a regulator requires. This clause survives termination for 5 years, and indefinitely for personal data and trade secrets.

11. **Term and termination.**
11.1 This agreement starts on the Start Date in Schedule 1 and runs for 24 months (the "**Initial Term**"). It then renews for successive 12-month periods unless either Party gives 90 days' written notice before a renewal date.

11.2 Either Party may terminate on written notice if the other materially breaches this agreement and fails to remedy the breach within 30 days of notice, or becomes insolvent.

11.3 Techcrast may terminate on 30 days' notice if the Partner loses a licence its lending requires, or uses the Platform unlawfully.

11.4 On termination the Partner pays Fees due to the termination date, clause 7.5 applies, and clauses 7, 8, 10, 12 and 13 survive.

12. **Warranties and liability.**
12.1 Each Party warrants that it has authority to enter this agreement. Techcrast warrants that it has the right to grant the rights in clause 2.

12.2 Lending decisions are the Partner's own. Scores, Interchange answers and bureau reports inform those decisions and are not a guarantee of repayment.

12.3 Neither Party is liable for indirect or consequential loss, or loss of profit. Each Party's total liability in any 12 months is capped at the Fees paid or payable in those 12 months. The cap does not apply to fraud, wilful misconduct, a breach of clause 7 or 10, or unpaid Fees.

13. **Disputes and law.** This agreement is governed by the laws of Kenya. The Parties' chief executives shall first try to settle any dispute within 21 days. Failing that, it shall be referred to arbitration by a sole arbitrator under the rules of the Nairobi Centre for International Arbitration, seated in Nairobi and conducted in English. Either Party may seek urgent interim relief from the courts.

14. **General.** Techcrast may assign or novate this agreement to an affiliate that owns or operates the Platform, on notice to the Partner. Otherwise neither Party may assign it without consent. This agreement, with its Schedules, is the entire agreement on its subject. Amendments must be in writing and signed. Notices go to the addresses in Schedule 5, and email notices are effective when sent to them. Neither Party is liable for delay caused by events beyond its reasonable control.

For Techcrast Software Solutions Limited

Name and title

Date

For [Partner legal name]

Name and title

Date

S1 Schedule 1 — Systems and start date

SYSTEM	TAKEN	NOTES
Lending Console — Premium / Startup edition	[ ]	Edition: [_____]
CallBox Call-Center	[ ]	Agent seats: [_____] · PBX: [own / ConnectBox]
Customer Portal	[ ]	App name: [_____]
Analytics & Reporting	[ ]	
Ledgerly Accounting	[ ]	
PeopleHub HR	[ ]	
The Interchange	[ ]	Member code(s): [_____]

Start Date: [_____] · Mode: [native book / bridged to the Partner's ServiceSuite, entity [_____]]

S2 Schedule 2 — Fees

ITEM	KES
Systems at list price (ConnectedSuite Price Book v1.0)	[_____] / month
Interchange membership (contributing member)	Waived
Partner rate, fixed for the Initial Term	**[_____] / month**
Onboarding	Waived
Usage past allowances	Price Book §4
Bureau reports	Bureau net price + excise + VAT + stated margin of [_____]%
SMS beyond allowance	Prepaid bundles, Price Book §4

S3 Schedule 3 — Interchange data-sharing protocol

1. **What is contributed.** For each open position: a borrower token, derived from the national ID by a keyed one-way function that only the Interchange can compute; the outstanding balance, arrears band and days past due; the product type; and the opening date. No name, telephone number or ID number leaves the Partner's node.
2. **How it is contributed.** The Partner's node publishes positions, signed with the Partner's own Ed25519 member key, at least daily. Every request between nodes and the Registry is signed and logged.
3. **What a member may ask.** The exposure, delinquency and intent of a borrower who has applied to it or is its customer, and only with that borrower's recorded consent. Each query carries a consent reference.
4. **What a member sees.** Aggregates only: how many members hold the borrower, total outstanding, worst arrears band and recent intent. A member never learns which other member holds the borrower, unless the borrower has consented to that disclosure.

5. **Bureau reports.** Requested through the Interchange and fulfilled under the contract-holding member's bureau subscription, which is reimbursed at cost. This requires the bureau's written approval to be in force, and the borrower's consent to a bureau enquiry.
6. **Audit.** Every query, consent and bureau pull is recorded in an audit log that each member can read for its own activity. The Interchange's governance may audit any member's consents on 10 business days' notice.
7. **Reciprocity.** A member's free ecosystem tier is linked to the currency of its contribution, enforced by the Interchange's policy engine.

S4 Schedule 4 — Service levels

MEASURE	COMMITMENT
Availability, measured monthly at the sign-in door	99.5%, excluding notified maintenance, which is carried out between 22:00 and 05:00 EAT
Severity 1: a System is down for all users	Response within 1 hour; work continues until it is restored
Severity 2: a core function is impaired	Response within 4 business hours
Severity 3: a question or minor fault	Response within 1 business day
Service credit if availability falls below 99.5%	5% of that month's Fees for each 0.5% below, up to 25%
Backups	Daily, retained 30 days; restore tested quarterly

S5 Schedule 5 — Contacts and notices

	TECHCRAST	PARTNER
Signatory	[_____]	[_____]
Commercial contact	birgen@techcrast.co.ke	[_____]
Data protection contact	[_____]	[_____]
Billing contact	birgen@techcrast.co.ke	[_____]
Product Council member	Emmanuel Birgen	[_____]